

Mahendra v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 3 March 2023 · WRIT - C No. 7481 of 2023 · **Writ disposed; theft-dues recovery withdrawn; fresh order after hearing.**

HEADNOTE

Challenge to a demand notice for recovery of electricity dues in a theft case. The department stated that the impugned recovery had been withdrawn and that a fresh order would be passed after hearing. The writ was disposed of with liberty to the department to pass that fresh order after following the procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, Mahendra, filed a writ against the State of Uttar Pradesh and the electricity department challenging the demand notice dated 18 October 2022 for recovery of electricity dues in a case of theft of electricity. Counsel for the department stated that the impugned recovery had been withdrawn and that a fresh order would be passed after affording the petitioner an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::3.3(e)

Fresh order after hearing in a theft-dues recovery

HOLDING

On the department's statement that the impugned recovery had been withdrawn, the writ was disposed of with liberty to pass a fresh order after affording the petitioner an opportunity of hearing and after following the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG The order does not cite clause 3.3(e). It refers only to the procedure prescribed under the U.P. Electricity Supply Code, 2005.

PRINCIPLE TAGS

opportunity-of-hearing-supply-code-procedure

The Court disposed of the writ when the department withdrew the impugned theft-dues recovery, and left the department at liberty to pass a fresh order after following the procedure under the U.P. Electricity Supply Code, 2005, including the hearing the department had undertaken to give. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY SUM WAS RECOVERABLE FOR THE ALLEGED THEFT OF ELECTRICITY

The impugned recovery was withdrawn. Any fresh order, and the dues it may determine, were left to the department.

¶ 1